

25STCV15739 25STCV15739

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-09-28

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Case Number: 25STCV15739 Hearing Date: September 28, 2026 Dept: 732

Amber Villagante v. Tesla, Inc., et al.

Monday, September 28, 2026

CASE NUMBER: 25STCV15739

UNOPPOSED

Defendant Tesla,
Inc.'s Motion to Compel Arbitration,.

Facts: This is a lemon law action. The Complaint alleges as follows. Plaintiff Amber Villagante ("Plaintiff") purchased a 2023 Tesla Model Y on September 4, 2023, with an express written warranty. (Complaint ¶ 6.) During the warranty period, the vehicle contained or developed various defects that the manufacturer has been unable to remedy. (Complaint ¶¶ 7–15.)

Procedural History:

Plaintiff filed the Complaint on June 27, 2025, alleging five causes of action:

1. Civ.

Code § 1793.2(d)

2.

Civ. Code § 1793.2(b)

3.

Civ. Code § 1793.2(a)(3)

4.

Breach of Implied Warranty of Merchantability

5.

Fraudulent Concealment

Defendant Tesla Inc. filed the present motion to compel arbitration on January 20, 2026. No opposition has been filed.

Analysis:

I.

MOTION TO

COMPEL ARBITRATION

On petition of a party to an arbitration agreement to arbitrate a controversy, a court must order the petitioner and respondent to arbitrate the controversy if it determines the arbitration agreement exists, unless (1) the petitioner has waived its right to arbitrate; (2) grounds exist for the revocation of the agreement; or (3) “[a] party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact.” (Code Civ. Proc., § 1281.2.)

“[T]he party moving to compel arbitration bears the burden of establishing the existence of a valid agreement to arbitrate, and the party opposing arbitration bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The role of the trial court is to sit as a trier of fact, weighing any affidavits, declarations, and other documentary evidence, together with oral testimony received at the court's discretion, to reach a determination on the

issue of arbitrability.” (Hotels Nevada
v. L.A. Pacific Center, Inc. (2006) 144 Cal.App.4th 754, 758.)

Defendant Tesla,
Inc. (“Defendant”) moves to compel arbitration of the claims of Plaintiff Amber
Villagante (“Plaintiff”) based on an arbitration agreement contained in the
Motor Vehicle Offer Agreement (“MBOA”) electronically executed by Plaintiff
when she purchased the vehicle over the internet. (Kim Decl. ¶¶ 3–4, Exh. 1.) In
that agreement, the signatory agrees that
“any dispute arising out of or relating to any aspect of the
relationship between you and Tesla will not be decided by a judge or jury but instead
by a single arbitrator in an arbitration administered by the American
Arbitration Association (AAA) under its Consumer Arbitration Rules.” (Kim Decl.
Exh. 1 at p. 3.) Plaintiff also signed another arbitration agreement upon
taking delivery of the vehicle, requiring arbitration of “[a]ny claim or
dispute. . . between you and us . . . which arises out of or relates to your
credit application, purchase or condition of this vehicle, this contract or any
resulting transaction or relationship (including any such relationship with third
parties who do not sign this contract) shall, at your or our election, be resolved
by neutral, binding arbitration and not by a court action..” (Kim Decl. Exh.
2.)

Defendant has shown
the existence of an arbitration agreement applicable to the present
controversy. Plaintiff has filed no opposition to the motion.

Accordingly, the
motion is GRANTED.

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Superior Court of California

County of Los Angeles

Department 732

AMBER VILLAGANTE,

Plaintiffs,

v.

TESLA,
INC., et al.,

Defendants.

Case No.:
25STCV19739

Hearing Date: September 28, 2026

[TENTATIVE] RULING RE:

Defendant Tesla, Inc.'s Motion to Compel Arbitration.

Defendant
Tesla, Inc.'s Motion to Compel Arbitration is GRANTED.

Defendant to provide notice.

Dated: September 28, 2026

Hon.
Richard S. Kemalyan

Judge
of the Superior Court